

MILITARY SUBSTANCE ABUSE AND BEHAVIORAL ADDICTION PROGRAM



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COMMANDANT INSTRUCTION 1000.10B

Subj: MILITARY SUBSTANCE ABUSE AND BEHAVIORAL ADDICTION PROGRAM

- Ref: (a) Coast Guard Substance Abuse Prevention and Treatment Manual, COMDTINST M6320.5 (series)
- (b) Military Separations, COMDTINST M1000.4 (series)
 - (c) Discipline and Conduct, COMDTINST M1600.2 (series)
 - (d) Reserve Policy Manual, COMDTINST M1001.28 (series)
 - (e) Safety and Environmental Health Manual, COMDTINST M5100.47 (series)
 - (f) Military Personnel Data Records (PDR) System, COMDTINST M1080.10 (series)
 - (g) United States Coast Guard Regulations 1992, COMDTINST M5000.3 (series)
 - (h) Military Justice Manual, COMDTINST M5810.1 (series)
 - (i) Administrative Investigations Manual, COMDTINST M5830.1 (series)
 - (j) Diagnostic and Statistical Manual of Mental Disorders, Fifth Edition, Text Revision (DSM-5-TR)
 - (k) Coast Guard Air Operations Manual, COMDTINST M3710.1 (series)
 - (l) U.S. Coast Guard Boat Operations and Training (BOAT) Manual, Volume I, COMDTINST M16114.32 (series).
 - (m) Administrative Remarks, Form CG-3307, COMDTINST 1000.14 (series)
 - (n) Shipboard Regulations Manual, COMDTINST M5000.7 (series)
 - (o) **Redacted content per Presidential Executive Order No.14168**
 - (p) Coast Guard Investigative Service Roles and Responsibilities, COMDTINST M5520.5 (series)
 - (q) Coast Guard Telework Program, COMDTINST 5330.4 (series)
 - (r) Coast Guard Personnel Allowance List (PAL) Manual, COMDTINST M5312.14 (series)
 - (s) Military Assignments and Authorized Absences, COMDTINST M1000.8 (series)
 - (t) Enlistments, Evaluations, and Advancements, COMDTINST M1000.2 (series)
 - (u) Officer Accessions, Evaluations, and Promotions, COMDTINST M1000.3
 - (v) Coast Guard Officer Evaluation System Procedures Manual, PSCINST 1611.1 (series)

1. **PURPOSE.** This Instruction establishes the Military Substance Abuse and Behavioral Addiction Program for the Coast Guard. This program is vital to maintain operational readiness and preserve the safety and security of the total Coast Guard workforce. As a U.S. military service and the nation's premier maritime law-enforcement agency, we must ensure a drug-free workforce. This Instruction also establishes performance and discipline

standards, including those for adjudication of drug and alcohol incidents, as well as underage drinking. Policy on other behavioral addictions such as gambling are also addressed.

2. ACTION. All Coast Guard unit commanders, commanding officers, officers-in-charge, deputy/assistant commandants, and chief of headquarters, directorates must comply with the policies contained within.
3. AUTHORIZED RELEASE. Internet release is authorized.
4. DIRECTIVES AFFECTED. Military Drug and Alcohol Policy, COMDTINST M1000.10A, is hereby cancelled.
5. DISCUSSION. This Instruction updates the former Coast Guard Military Drug and Alcohol Policy, COMDTINST M1000.10A with a new title change. It also incorporates policy changes that were established by ACN 079/19, ACN 131/19, ACN 082/20, and ALCOAST 308/20, and various memoranda issued by the Assistant Commandant for Human Resources, (CG-1).
6. DISCLAIMER. This guidance is not a substitute for applicable legal requirements, nor is it itself a rule. It is intended to provide administrative guidance for Coast Guard personnel and is not intended nor does it impose legally-binding requirements on any party outside the Coast Guard.
7. MAJOR CHANGES. This Instruction has been revised from its previous version, consolidating and clarifying repetitive or conflicting content. A thorough review of the entire Instruction is strongly recommended. Major changes include:
 - a. The applicability section of Chapter 1, *Overview*, is amended to include members of the Reserve component.
 - b. The conditions for separation after a second alcohol incident have been revised in Chapter 3, *Separation Conditions for Alcohol Incident*, to create equity between active duty, reserve, commissioned officers, and enlisted members.
 - c. The conduct constituting a Drug Incident in Chapter 5, *Drug Incidents*, is amended to include a positive drug-test for all Coast Guard members and to clarify the applicability of the conduct to reservists regardless of duty status.
 - d. Section titled *Drug Testing Conducted in Conjunction with Training* in Chapter 6, *Testing for Controlled and Prohibited Substances*, is amended to require all recruits, cadets, officer candidates, and direct commission officers to be drug-tested within 72 hours of reporting to active duty, and all "A" School students to be tested within 96 hours of reporting to training.
 - e. The new positions of the Program Manager (PM) and Major Drug Testing_Coordinator

(MAJCOM) are established in Chapter 6, *Testing for Controlled and Prohibited Substances*, to reduce urinalysis error rates and ensure oversight of the Coast Guard Urinalysis Program.

- f. The new positions and authority of the Drug Testing Coordinator (DTC), Alternate Drug Testing Coordinator (ADTC), Second Verifier (SV), and the Specimen Collector (SC) are established in Chapter 6, *Testing for Controlled and Prohibited Substances*.
 - g. Chapter 6, *Testing for Controlled and Prohibited Substances*, has been revised to include Hair Specimen Testing (HST) and Oral Fluid Testing (OFT) as approved additional drug testing methods.
 - h. Chapter 7, *Prohibition on Hemp and Marijuana Establishments*, is added to outline Coast Guard policy on hemp, cannabidiol (CBD), and marijuana establishments.
 - i. Chapter 8, *Prohibition on Possession of Drug Paraphernalia*, has been added to the Instruction to eliminate the wrongful possession, use, promotion, or distribution of drug paraphernalia by Coast Guard service members.
8. SCOPE AND AUTHORITIES. It is recommended that the reader become familiar with the statutes and publications that are noted through this Instruction and are listed in order of appearance:
 Referenced provisions of Title 10, United States Code (U.S.C.);
 Referenced provisions of Title 14, U.S.C.;
 Title 18, U.S.C. § 3118;
 Controlled Substance Act (CSA) (21 U.S.C. § 801 et seq);
 World Anti-Doping Code Prohibited List available at <https://www.wada-ama.org/en/resources/world-anti-doping-program/prohibited-list>;
 Military Rules of Evidence (M.R.E) 313(b);
 Referenced provisions of 42, Code of Federal Regulations (C.F.R.), Part 2;
 Designer Anabolic Steroid Control Act of 2014 (Public Law 113);
 Title 7 U.S.C. § 1639o;
 FDA Generally-Recognized-As-Safe (GRAS) List available in Title 21, U.S.C.
 9. IMPACT ASSESSMENT. Changes to testing requirements in Chapter 6, *Testing for Controlled and Prohibited Substances*, may impact unit urinalysis allocations and testing costs. Authorized additional forms of drug testing may result in increased unit testing costs.
 10. ENVIRONMENTAL ASPECT AND IMPACT CONSIDERATIONS. The Office of Environmental Management, Commandant (CG-47) reviewed this Commandant Instruction and the general policies contained within, and determined that this policy falls under the Department of Homeland Security (DHS) categorical exclusion A3. This Commandant Instruction will not result in any substantial change to existing environmental conditions or violation of any applicable federal, state, or local laws relating to the protection of the environment. It is the responsibility of the action proponent to evaluate all future specific actions resulting from this policy for compliance with the National Environmental Policy Act (NEPA), other applicable environmental requirements, and the U.S. Coast Guard

Environmental Planning Policy, COMDTINST 5090.1 (series).

11. DISTRIBUTION. No paper distribution will be made of this Instruction. An electronic version will be located in the Coast Guard Directives System Library internally and, if applicable, on the Internet at www.dcms.uscg.mil/directives.
12. RECORDS MANAGEMENT CONSIDERATIONS. Records created as a result of this Instruction, regardless of format or media, must be managed in accordance with the records retention schedules located on the Records Resource Center SharePoint Online site: <https://uscg.sharepoint-mil.us/sites/cg61/CG611/SitePages/Home.aspx>.
13. FORMS/REPORTS. The forms referenced in this Instruction are available on the Coast Guard Standard Workstation or on the Internet: www.dcms.uscg.mil/Our-Organization/Assistant-Commandant-for-C4IT-CG-6/The-Office-of-Information-Management-CG-61/Forms-Management/.
14. SECTION 508. This Instruction was created to adhere to Accessibility guidelines and standards as promulgated by the U.S. Access Board. If changes are needed, please communicate with the Coast Guard Section 508 Program Management Office at Section.508@uscg.mil.
15. REQUEST FOR CHANGES. Recommendations for changes or improvements should be submitted via the chain-of-command to the Office of Military Personnel Policy, Commandant (CG-1331), at HQSPolicyandStandards@uscg.mil.

/ERIC C. JONES/
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Deputy Commandant for Personnel
Readiness

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CHAPTER 1 OVERVIEW

A. Introduction.

1. Objective. The Military Substance Abuse and Behavioral Addiction Program is vital to maintain operational readiness and preserve the safety and security of the total Coast Guard workforce. As a U.S. military service and the nation's premier maritime law-enforcement agency, we must ensure a drug-free workforce.
2. Background. Frequent, random urinalysis testing is the primary drug test inspection tool to detect unlawful use of controlled and prohibited substances and separate drug abusers. Conducted correctly, random urinalysis testing achieves compliance with policy by sustaining, deterring, and safeguarding military personnel readiness and wellbeing.
3. Purpose. This Instruction enhances the Coast Guard Urinalysis and the Coast Guard Drug Testing Program overall. The Instruction supplements urinalysis with additional drug testing including hair specimen and oral-fluid tests; introduces a more robust and persistent command leadership involvement; outlines policies on hemp and marijuana-establishments, and updates procedures on the CG-PSC-PDS-FS, CG portal site at <https://cg.portal.uscg.mil/units/psc/FS/default.aspx> to most effectively apply these provisions.
4. Policy. The policies and procedures of this Instruction are consistent with those of the other Armed Services and promote standardization and joint service operations among all Services.

B. **Authority**. The authority for this Instruction comes from Title 10 and Title 14, U.S.C. Specific laws are cited in subsequent Chapters, as appropriate.

C. **Applicability**. This Instruction applies to Coast Guard active duty military members and the members of the Reserve component at all times, regardless of duty status.

CHAPTER 2 ROLES AND RESPONSIBILITIES

A. **Objective.** This chapter describes general responsibilities for Coast Guard units and military members. Subsequent chapters provide details on additional specific responsibilities.

B. **Responsibilities.**

1. Commandant (CG-133). Develops policy, provides oversight, and establishes, in concert with the Coast Guard Personnel Service Center (CG-PSC), procedures to administer the Military Substance Abuse Program. Commandant (CG-133) retains waiver authority for policies and standards in this Instruction, unless explicitly designated in another Coast Guard policy.
2. Commandant (CG-111). Develops policy and, in coordination with the Health, Safety, and Work Life Service Center (HSWL SC), establishes procedures to administer the Command Drug and Alcohol Representative (CDAR) Program and Substance Abuse Prevention and Treatment (SAP) Program. The SAP Program establishes guidelines and strategies for prevention, screening and referral, and treatment of substance use disorders.
3. Commandant (CG-1111). Administers substance abuse prevention, training, and education to Coast Guard members under the SAP Program, as directed in Reference (a).
4. Commander, Coast Guard Personnel Service Center (CG-PSC).
 - a. Publishes procedures for, administers, and ensures effective Coast Guard Urinalysis Program execution in accordance with Chapter 6, *Testing for Controlled and Prohibited Substances*, of this Instruction;
 - b. Publishes and maintains the drug testing procedures on the CG-PSC-PDS-FS, CG portal site at: <https://cg.portal.uscg.mil/units/psc/FS/default.aspx>;
 - c. Provides advice to command cadre at field commands, as needed;
 - d. Processes requests for retention or separations, and administers Administrative Separation Boards (ASBs) in accordance with Reference (b);
 - e. Maintains Official Military Personnel Files (OMPF) in accordance with Reference (f); and,
 - f. Designates area of responsibility for Major Drug Testing Coordinators (MAJCOM).
5. Commander, Coast Guard Force Readiness Command (FORCECOM). Assists Commander (CG-PSC) and Commandant (CG-111) in educating all military members to ensure appropriate understanding of drug and alcohol policies and procedures.

6. Commanding Officers (COs) and Officers-in-Charge (OICs). Identify substance abuse, refer members for screening and assessment, eliminate substance abuse, strictly enforce policy contained in this Instruction, and provide members with additional direction based on specific or operational requirements where necessary. COs/OICs also:
 - a. Create a command environment that supports, encourages, and models the use of low-risk guidelines for alcohol consumption; discourages alcohol misuse and underage drinking; and encourages help-seeking behavior;
 - b. Designate, provide resources to obtain training, and delegate CDAR, Drug Testing Coordinator (DTC), Alternate Drug Testing Coordinator (ADTC), Second Verifier (SV), Specimen Collector (SC), and MAJCOM responsibilities to appropriate command staff members;
 - c. Make substance abuse training a yearly priority, as alcohol misuse is linked to many co-occurring conditions such as domestic violence, sexual assault, suicidal behaviors, and comorbid conditions such as physical and emotional conditions;
 - d. Administer a Drug Testing Program consistent with the requirements outlined in Chapter 6, *Testing for Controlled and Prohibited Substances*, of this Instruction; and,
 - e. Monitor the Coast Guard Business Intelligence (CGBI) Drug Testing Report to ensure that all unit personnel (100 percent assigned) are urinalysis tested at least once during the FY, in accordance with Paragraph 6.D.1.d., *Random Selection Testing Requirements*, of this Instruction.
7. Command Drug and Alcohol Representative (CDAR). CDARs serve as a vital link to represent the command and the Coast Guard to administer training to prevent substance abuse and assist with required administrative responsibilities associated with alcohol and drug incidents. Reference (a) details CDAR responsibilities and procedures for unit-level CDARs. Additional CDAR responsibilities are provided on the HSWL SC CG portal page at: https://cg.portal.uscg.mil/units/hswlsc/work-life_division/SitePages/Home.aspx.
8. Military Members. All members subject to Coast Guard policy are responsible for being familiar and complying with the policies contained in this Instruction. Members are encouraged to obtain current state-of-the-science education on substance misuse or abuse prevention.

CHAPTER 3 ALCOHOL USE DISORDERS

- A. **Objective.** This chapter states policies and standards to address alcohol misuse. Driving Under the Influence (DUI) / Boating Under the Influence (BUI) is handled separately in Chapter 4, *Driving Under the Influence*, of this Instruction.
- B. **Alcohol Use Disorder (AUD).** Reference (j) identifies 11 criteria that can be used to determine AUD presence or severity. A medical professional must perform a screening, assessment, and diagnosis for potential AUD upon commission of an alcohol incident or upon a referral. The direction for AUD treatment and diagnosis can be found in Reference (a).
- C. **CO/OIC Responsibility.**
1. Low-Risk Drinking Guidelines. All officers and senior enlisted members must promote the Low-Risk Drinking Guidelines and responsible attitudes toward the use of alcoholic beverages, both on and off Coast Guard units. Reference (a) provides guidance on how to encourage, teach, and support these low-risk guidelines.
 2. Authority. Reference (g) regulates the introduction, possession, sale, or use of alcoholic beverages on board Coast Guard units, vessels, aircraft, and government vehicles.
 3. Additional Standards. COs/OICs may, upon consultation with their servicing legal office, establish more stringent standards based upon unit and mission requirements consistent with specific unit or platform conditions, operational status, host nation law, and guidance from superiors in the chain-of-command or supervision.
 4. Guidelines. Commands must provide specific guidance to military members regarding mission requirements and restrictions pertaining to alcohol consumption based upon the unit's status and operations in accordance with the below relevant guidelines.
 - a. *Aviation Personnel.* Specific direction for aviation personnel can be found in Reference (k).
 - b. *Boat Crew and Watchstanders.* Specific direction for boat crew and watchstanders can be found in Reference (l).
 - c. *Cutter in ALPHA or High Readiness Status.* Specific direction for those serving on cutters can be found in Reference (n).
 - d. *COs and OICs.* In addition to setting the example and adhering to the above guidelines, COs/OICs should exercise due diligence in consuming alcohol with the expectation they may be required to respond to the needs of their unit at any time.

D. Alcohol Incident (AI).

1. Definition. An AI is any behavior that the CO/OIC determines by a preponderance of evidence, after considering all the relevant facts (i.e., police reports, administrative investigation, eyewitness statements, and member's statement, if provided), in which alcohol was a contributing factor that results in a member's loss of ability to perform assigned duties or is a violation of the Uniform Code of Military Justice (UCMJ), Federal, state, or local laws. The military member need not be found guilty at court-martial, in civilian court, nor be awarded non-judicial punishment for a CO/OIC to determine that the member's behavior constitutes an AI.
2. Consumption. Except as set forth in Paragraph 3.D.3., *Provision of Alcohol to Underage Persons*, the military member must actually consume alcohol for a CO/OIC to determine that an AI occurred. Simply being present where alcohol is consumed cannot constitute an AI by the standards set forth in this Instruction.
3. Provision of Alcohol to Underage Persons. COs/OICs, at their discretion, may award an AI to any military member who provides alcohol to an underage member, regardless of whether the alcohol is actually consumed by any underage member.
4. Underage Drinking as AI: The Coast Guard's minimum drinking age is 21 for all military members (Active Duty and Reservists) in a duty status, wherever located and at all times. Active Duty members on approved leave, as defined in Reference (s), and Reserve members not in a duty status are subject to the minimum drinking age set by state or local law. Drinking alcohol while under the respective minimum drinking age will constitute an AI.
5. Impairment While on Duty: All military members (Active Duty and Reservists) must be free from the direct or residual effects of alcohol consumption (e.g. hangover, dizziness, sickness, fatigue, etc.) when reporting for duty, commencing duties, upon the expiration of liberty, or any combination of the three.

E. Alcohol Use Disorder Referrals. Command referrals, self-referrals, and incident referrals must be made in accordance with Reference (a).

F. Alcohol Screening (AS). Upon referral, a Coast Guard Medical Officer performs a substance abuse screening to determine the nature and extent of alcohol abuse. This evaluation must be performed by a physician, physician assistant, or nurse practitioner who has attended Addiction Orientation for Health Care Provider (AOHCP) training or has equivalent training regarding substance abuse and chemical dependency. A clinical psychologist, Department of Defense (DoD) or civilian-equivalent Counseling and Assistance Center (CAAC) counselor

with the above training may also perform this evaluation. CDARs are not qualified to provide alcohol screenings.

G. Response to Alcohol Incident. The first time a military member is involved in an AI, except those described in Chapter 4, *Driving Under the Influence*, of this Instruction, the CO/OIC must review the member's OMPF to verify that the current AI is the first one. The CO/OIC must also ensure that the following actions are completed:

1. Counseling. The command must counsel the military member on Coast Guard alcohol-use policy (e.g., low-risk drinking guidelines, platform operational standards, etc.) contained in this Instruction and in Reference (a).
2. Effect of Future Alcohol Incidents. Officers and chief warrant officers must be advised that a second AI will result in a recommendation for separation by the CO to CG-PSC in accordance with Reference (b). Enlisted members must be advised that a second AI will result in their processing for separation. Enlisted members who are approved for retention in accordance with Paragraph 3.I, *Recommendation for Retention*, of this Instruction after their first documented AI are not entitled to an Administrative Separation Board (ASB) for any subsequent AI and must be discharged.
3. Documentation.
 - a. *Administrative Remarks, Form CG-3307.* Commands must use Administrative Remarks, Form CG-3307 Performance and Discipline – 13 (P&D – 13), to document an AI for both officers and enlisted members in accordance with Reference (m). The CO/OIC must sign the Administrative Remarks, Form CG-3307 (P&D – 13), because the CO/OIC holds the authority to determine whether the AI occurred. The Administrative Remarks, Form CG-3307 (P&D – 13), should explicitly state that the CO/OIC has determined by a preponderance of the evidence that the member committed an alcohol incident and should set forth the relevant facts and evidence upon which that determination was made. The Administrative Remarks, Form CG-3307 (P&D – 13), must also state whether the consumption affected the member's ability to perform assigned duties or brought discredit upon the Uniformed Services where an AI involves underage consumption, see Paragraph 3.D.3., *Provision of Alcohol to Underage Persons*, of this Instruction. AIs must also be documented in the member's OMPF, per Reference (f).
 - b. *Performance Evaluations – Enlisted Members.* An unscheduled Enlisted Evaluation Report (EER) is required to reflect a civil conviction, a military conviction, or action taken equivalent to a guilty finding (i.e., adjudication withheld; deferred prosecution; entry into a pretrial intervention program; any similar disposition of charges that may include fines, probation, or community service). A disciplinary EER is required, in

accordance with Reference (t), when the command takes final action on a command investigation and concludes, by a preponderance of the evidence, that the member committed the AI, as defined in this chapter. An acquittal or *nolle pros* in a civilian jurisdiction does not prohibit the command from determining that the member committed an AI using a preponderance of the evidence standard.

- c. *Performance Evaluations – Officers.* Officer Evaluation Reports (OERs) must reflect a civil conviction, a military conviction, or action taken equivalent to a guilty finding (e.g., adjudication withheld; deferred prosecution; entry into a pretrial intervention program; any similar disposition of charges that may include fines, probation, or community service). An OER is required, in accordance with References (u) and (v), when the command takes final action on a command investigation and concludes, by a preponderance of the evidence, that the member committed the AI, as defined in this chapter. An acquittal or *nolle pros* in a civilian jurisdiction does not prohibit the command from determining that the member committed an AI using a preponderance of the evidence standard.

- 4. Substance Abuse Education (Prime for Life or myPRIME). All military members receiving an AI must be enrolled and complete the Prime for Life, myPRIME, or equivalent training program per Reference (a).

H. Separation Conditions for Alcohol Incident. Commands must initiate administrative separation procedures for the following members who commit a second AI:

- 1. Active Duty Officers and Reserve Officers on Active Duty. COs must submit to CG-PSC (OPM) a recommendation to separate any Active duty officers and Reserve officers on active duty who commit a second AI, in accordance with Reference (b).
- 2. Regular Enlisted and Reserve Enlisted on Active Duty. Active Duty enlisted members and Reserve enlisted members on active duty that are involved in a second AI must be processed for separation in accordance with Reference (b).
- 3. Reserve Officers and Enlisted Not on Active Duty. All Reserve officers must have a recommendation for separation submitted to a Board of Inquiry following a second AI in accordance with Reference (d). All Reserve enlisted members involved in a second AI must be processed for separation in accordance with Reference (b).

I. Administrative Separation Boards (ASB). Commands must refer to Reference (b) for requirements to initiate an ASB for members found to have committed a second AI, unless the members are not entitled to an ASB in accordance with Paragraph G.2 *Effect of Future Alcohol Incident*, of this Instruction.

J. Recommendation for Retention. COs/OICs may recommend retention for both officer and

enlisted members whom the CO/OICs determine have committed an AI for which separation processing is mandatory. However, retention following a second AI should be extraordinarily rare and based strictly on any mitigating or extenuating facts surrounding the incident. Consideration will be given by Commander (CG-PSC-OPM/EPM/RPM) if either AI involved underage consumption and did not affect the member's ability to perform assigned duties or did not otherwise involve a violation of the UCMJ, Federal, state, or local laws.

1. Recommending Retention of Enlisted Members. COs/OICs have the authority to recommend retention of enlisted members in cases in which the CO/OIC believes mitigating or extenuating circumstances, or an exceptional situation, warrants additional consideration.
 - a. A CO/OIC must submit a retention and treatment recommendation letter (including medical screening results, treatment plan, and recommendation concerning treatment), to Commander (CG-PSC-EPM/RPM) via the chain-of-command with the retention recommendation. Commander (CG-PSC-EPM/RPM) will consult with Commander (CG-PSC-PSD) to determine the appropriate action regarding retention. A CO/OIC's recommendation is not binding on any retention decision made by CG-PSC.
 - b. The CO/OIC must submit the command recommendation for retention as a cover letter to the required discharge request. See Reference (b).
 - c. If Commander (CG PSC-EPM/RPM) approves retention, the CO/OIC must ensure the following occurs:
 - (1) Counsel the member on the Coast Guard alcohol misuse policy contained in this chapter; this counseling must be recorded and acknowledged by an Administrative Remarks, Form CG-3307 (P&D – 13), and entered in the member's OMPF.
 - (2) Advise the member that any subsequent AI will result in their discharge and the member will not be entitled to an ASB. The member must then sign an Administrative Remarks, Form CG-3307 (P&D – 19), that states: "To be retained in the Coast Guard, you waive your rights to any future ASB for unsuitability, misconduct, or both where alcohol or drugs is a contributing factor. You must adhere to your treatment plan. Any future misconduct involving alcohol or drugs will result in you being processed for separation without entitlement to an ASB." Commands must also issue this Administrative Remarks Form CG-3307 (P&D – 19), to a military member who is retained after a DUI/BUI.

2. Officer Separation Process. By law and policy, as outlined in Reference (b), the officer separation process affords COs the opportunity to provide recommendations via the endorsement process.

CHAPTER 4 DRIVING UNDER THE INFLUENCE

- A. **Objective.** This Chapter states policies and standards to address DUI. The Coast Guard has a legal, civil, and institutional responsibility that requires a firm stance on impaired driving. As a result, there must be well-defined consequences, including serious career implications, that may result in separation for members who are found to have committed this offense.
- B. **Driving Under the Influence (DUI).** DUI refers to the illicit drunken or impaired operation of, or physical control of, a motor vehicle, aircraft, or vessel (which is also known as Boating under the Influence or BUI). Reference (e) provides safety considerations related to impaired driving, including DUI, and details the alcoholic beverages open container prohibition in both government vehicles at any time and privately owned vehicles when on any Coast Guard installation.
1. DUI of Alcohol. DUI of Alcohol is sometimes known/named as Driving While Intoxicated (DWI) or Operating While Intoxicated (OWI). A recorded Blood-Alcohol-Content (BAC) test of .08% alcohol or higher may by itself establish by a preponderance of evidence that the member drove under the influence, without the need for the government to produce any other evidence, if the member consumed the alcohol voluntarily. A CO/OIC may find that a member committed a DUI violation for vehicle operation while under the .08% BAC legal limit where there is a preponderance of evidence that the member was operating the vehicle in an unsafe manner because his or her motor skills, judgment, or both were impaired by an intoxicating substance. In some civilian jurisdictions, the civilian authorities may dismiss DUI charges, accept a member's plea to a reduced charge of reckless driving or another lesser charge, or allow a member to attend a pre-trial diversion program in lieu of formal charges. The actions by the civilian jurisdiction do not prohibit a CO/OIC from finding by a preponderance of the evidence that the member committed a DUI violation, regardless of the outcome of the civil charges.
 2. DUI of Intoxicants. DUI of intoxicants include illegal drugs and prohibited substances, as defined in Paragraph 6.B., *Types of Substances*, of this Instruction, sufficient to impair judgment and the full exercise of mental or physical faculties. This includes prescription medications that impair mental or physical faculties. The controlled substance that caused the intoxication is immaterial. The member must have consumed the intoxicants voluntarily to be found to have committed a DUI of intoxicants. Similar to Paragraph B.1. above, adjudication of the charges by the civil jurisdiction does not restrict the authority of the CO/OIC to find that the member committed the offense, if supported by a preponderance of the evidence.
- C. **Driving Privileges.** The policy in this paragraph applies to all drivers who have Coast Guard installation driving privileges, including, but not limited to, military members, dependents,

and military retirees.

1. Driving Privileges Restriction. Commands have the authority to restrict driving privileges on Coast Guard installations or bases when a person has been lawfully apprehended by civil or military authorities for DUI, refused a BAC test when it was lawfully offered, or has been subject to disciplinary or punitive actions by civil or military authorities for DUI. See Paragraph 4.B., *Driving Under the Influence*, of this Instruction.
 - a. *Duration*. Commands have the authority to restrict a member's driving privileges aboard Coast Guard installations or bases for a period not to exceed one year for a first offense. Commands may impose a longer restriction for subsequent offenses when the facts of the case, such as frequent offenses or violation of driving privileges, warrant.
 - b. *Extent of Restriction*. A restriction may involve a total suspension of driving privileges on military installations or bases, may only restrict driving to or from certain areas of the installation/base, and may include exceptions allowing the member to access the installation/base for certain approved activities. Exceptions may be granted to address issues that include, but are not limited to mission performance, unusual personal or family hardship, or safety concerns. This does not authorize a person to drive on an installation if that person's driver's license is suspended or revoked by a local, state, Federal, or host country civil court or administrative agency.
 - c. *Implied Consent on Coast Guard Bases with Concurrent or Exclusive Federal Legislative Jurisdictions*. Pursuant to 18 U.S.C. § 3118, any person who refuses to consent to a test of such person's blood, breath, or urine after being stopped for driving while under the suspected influence of a drug or alcohol in any area of concurrent or exclusive federal legislative jurisdiction will be denied the privilege of operating a motor vehicle in areas of concurrent or exclusive jurisdictions, on Coast Guard installations, or both for a period of one year commencing on the date of arrest upon which such test or tests were refused. This applies to stops made by both military and civilian authorities. Commands should consult their servicing legal offices to determine whether any part of their facilities fall within areas of concurrent or exclusive federal legislative jurisdiction.
 - d. *Notification*. Commands must notify the member of driving-privilege restrictions in writing and the member must acknowledge those restrictions in writing. Commands will use Administrative Remarks, Form CG-3307 (P&D – 07), to document driving restrictions. A copy of the CG-3307 must be sent to Commander (CG PSC-PSD-MR) to be placed in the member's OMPF, as detailed in Reference (f).

2. Applicability. Driving-privilege restrictions apply only to the offender. Family members and others who are non-offenders and otherwise are authorized to access and drive aboard Coast Guard installations are still permitted to operate vehicles on the installation.
3. Notify Local Armed Forces Facilities. If a command imposes restrictions, the command may furnish the individual's name, the suspension period, and a description of vehicles owned to all other local area Armed Forces facilities and local police departments. Each command in consultation with their servicing legal office should establish an agreement with other local area Armed Forces facilities and local police departments regarding what information may be shared and the procedure for sharing this information. In addition, the CO/OIC should notify the receiving CO/OIC of an active driving restriction where a Coast Guard member is transferred to a new duty station. The receiving CO/OIC must continue any remaining portion of the restriction and so notify other Armed Forces facilities and local police in the new local area.
4. Safe Driving Training. Per Reference (e), the command may require personnel convicted of a serious moving violation, including DUI, to complete a Driver Improvement Course.

D. Administrative Separation Boards (ASB). Commands must refer to Reference (b) for requirements to initiate ASB for members found to have committed a DUI or BUI.

E. Administrative and Disciplinary Actions.

1. Inquiry. COs/OICs are responsible for conducting adequate inquiries into alleged DUI/BUI incidents, in accordance with Reference (i), and for taking remedial action if necessary, in accordance with this Instruction. Commands may incorporate police reports and other documentation from civil authorities into the preliminary inquiry or investigation conducted by the command and may seek assistance from Coast Guard Investigative Service (CGIS) in obtaining such reports.
2. Medical Screening. COs/OICs must immediately screen and refer military members for medical screening in accordance with Reference (a) for the below listed situations. A Coast Guard provider, who has completed the AOHCP course, is the preferred provider to conduct such medical screenings.
 - a. When the CO/OIC makes a written finding (a negative Administrative Remarks, Form CG-3307, entry) setting forth the facts of the matter, based on a preponderance of the evidence, that the military member was drunk or impaired while operating a vehicle, aircraft, or vessel;
 - b. When a member is arrested for DUI by a law enforcement authority;
 - c. When action is taken against a military member equivalent to a guilty finding (i.e., adjudication withheld; deferred prosecution; entry into a pretrial intervention

- program; any similar disposition of charges that may include fines, probation, or community service) in regards to the member's Federal, State, local DUI/BUI charge;
- d. When a military member is awarded non-judicial punishment for DUI/BUI; or,
 - e. When a military member receives a civil revocation/suspension of driving privileges for DUI/BUI or other AI offense.
3. Reports and Documentation. The following reports and documentation are required when Coast Guard military members (officers and enlisted, active duty and reserve) commit, or are lawfully arrested, for a DUI/BUI or related alcohol offense:
- a. *Report of Civil Arrest.* All military members (including reservists not in a duty status) are required to report to their command all incidents of civil arrest and subsequent civil action in accordance with Reference (c).
 - b. *Administrative Remarks, Form CG-3307.* Commands must use Administrative Remarks, Form CG-3307 (P&D – 13), to document a DUI/BUI for both officers and enlisted members in accordance with Reference (m). The CO/OIC must sign the Administrative Remarks, Form CG-3307 (P&D – 13), because the CO/OIC holds the authority to determine whether the DUI /BUI occurred. The Administrative Remarks, Form CG-3307 (P&D-13), should explicitly state that the CO/OIC has determined by a preponderance of the evidence that the member committed a DUI/BUI and should set forth the relevant facts and evidence upon which that determination was made. The Administrative Remarks, Form CG-3307 (P&D – 13), must be included in the member's OMPF to document the DUI/BUI.
 - c. *Performance Evaluations – Enlisted Members.* An unscheduled EER is required to reflect a civil conviction, a military conviction, or action taken equivalent to a guilty finding (e.g., adjudication withheld; deferred prosecution; entry into a pretrial intervention program; any similar disposition of charges that may include fines, probation, or community service). A disciplinary EER is required, in accordance with Reference (t), when the command takes final action on a command investigation and concludes, by a preponderance of the evidence, that the member committed the DUI/BUI, as defined in this chapter. An acquittal or *nolle pros* in a civilian jurisdiction does not prohibit the command from determining that the member committed a DUI/BUI using a preponderance of the evidence standard.
 - d. *Performance Evaluations – Officers.* OERs must reflect a civil conviction, a military conviction, or action taken equivalent to a guilty finding (e.g., adjudication withheld; deferred prosecution; entry into a pretrial intervention program; any similar disposition of charges that may include fines, probation, or community service). An OER is required, in accordance with References (u) and (v), when the command takes

final action on a command investigation and concludes, by a preponderance of the evidence, that the member committed the DUI/BUI, as defined in this chapter. An acquittal or *nolle pros* in a civilian jurisdiction does not prohibit the command from determining that the member committed a DUI/BUI using a preponderance of the evidence standard.

CHAPTER 5 DRUG INCIDENTS

- A. **Objective.** Detect and separate military members who misuse or abuse, traffic in, or unlawfully possess controlled or prohibited substances. The following are Coast Guard substance-abuse-policy enforcement tenets.
1. Enforcement. Enforce the prohibition of controlled and otherwise prohibited substances. Controlled substances are those substances that are listed in Schedules I through IV established by the Controlled Substance Act (CSA) (21 U.S.C. § 812) or are referenced in Article 112a of the UCMJ, 10 U.S.C. § 912a. Controlled and prohibited substances are defined in Paragraph 6.B., *Type of Substances*, in this Instruction.
 2. Prohibited and Limited Use. Prohibit substance abuse and limit use of substances to the lawful use of alcohol or medical provider-prescribed medication.
- B. **Drug Abuse.** Drug abuse is the use of a drug or substance for other than its intended legal use.
- C. **Substance Use Disorder-Severe (or Drug Dependence).** Drug Dependence is interchangeable with Substance Use Disorder-Severe. This disorder is a chronic disease characterized by repetitive, compulsive drug-use, which interferes with the user's health, safety, job performance, family life, or other necessary social adaptation. This disease may involve the increasing need for drugs. A drug dependent individual may experience withdrawal symptoms when they stop taking drugs. Substance Use Disorder-Severe also applies to a medical diagnosis made by a physician, physician assistant, clinical psychologist, or nurse practitioner who has attended AOHCP training or has equivalent training regarding substance abuse and chemical dependency. The criteria to establish a Substance Use Disorder-Severe diagnosis can be found in Reference (j). Medical diagnosis is primarily used to determine the appropriate level of treatment.
- D. **Drug Incident (DI).** For the purposes of this Instruction, a DI applies not only to controlled substances but also to prohibited substances as defined in Paragraph 6.B.2, *Prohibited Substance*, of this Instruction. Any of the following conduct constitutes a DI as determined by the CO/OIC based upon a preponderance of evidence standard and in consultation with the servicing legal office:
1. Intentional Use or Misuse of Controlled or Prohibited Substances. Intentional use of controlled or prohibited substances by active duty members and members of the Reserve component, without a valid prescription or in a manner inconsistent with a valid prescription.
 2. Wrongful Possession of Controlled Substances. Wrongful possession as defined in Article 112a of the UCMJ, 10 U.S.C. § 912a.

3. Trafficking, Distributing, Importing, or Exporting Controlled Substances. Knowingly and unlawfully trafficking of controlled substances including but not limited to distributing, importing, or exporting.
4. Intentional Misuse of Non-Controlled Substances. The intentional misuse of non-controlled substances, such as inhalants, glue, cleaning agents, or over-the-counter (OTC) medication or prescription medications, to obtain a mind-altering effect, contrary to their intended use.
5. Civil or Military Conviction for Wrongful Use, Possession, or Trafficking of Drugs. A civil or military conviction for wrongful use, possession, or trafficking of drugs.
6. Violation of a Lawful Order. Any violation of a lawful order issued pursuant to Chapter 6, *Testing for Controlled and Prohibited Drugs*.
7. Violation of a General Order. Any violation of the general order contained in Chapter 7, *Prohibition on Hemp and Marijuana Establishments*, or Chapter 8, *Prohibition on Possession of Drug Paraphernalia*.

E. **Substance Abuse Referrals.** Command referrals, self-referrals, and incident referrals must be made in accordance with Reference (a).

F. **Substance Abuse Screening.** Upon referral, a Coast Guard medical officer performs a substance abuse screening to determine the nature and extent of drug abuse. This evaluation must be performed by a physician, physician assistant, or nurse practitioner who has attended AOHCP training or has equivalent training regarding substance abuse and chemical dependency. A clinical psychologist, Department of Defense (DoD) or civilian-equivalent Counseling and Assistance Center (CAAC) counselor with the above training may also perform this evaluation. CDARs are not qualified to provide substance abuse screenings.

G. **Drug Incident Investigations.**

1. Summary. The Coast Guard does not tolerate the intentional use of controlled and prohibited substances or prescription drug misuse. Additionally, as law-enforcement agency members, Coast Guard personnel are expected to maintain a lifestyle that neither condones substance abuse by others nor exposes them to accidental intake of controlled substances. Impairment puts members, crews, and missions at risk and is not a behavior consistent with the Coast Guard culture and Core Values.
 - a. *Initiating an Investigation.* Upon receiving a positive, confirmed drug-test result or other evidence of misuse, trafficking, or unlawful possession of a controlled or prohibited substance, COs/OICs must promptly, after a consultation with the servicing legal office, notify CGIS pursuant to Reference (p). This requirement does not apply to drug tests conducted during the course of a substance abuse treatment

program, as indicated in Paragraph 6.D.4.b, *Limits on Use of Patient Records*, of this Instruction. If CGIS declines to investigate, the command must convene an investigation in accordance with Reference (i). If CGIS and the servicing legal office predicates an investigation upon notification by the command, the CO/OIC will not convene a separate administrative investigation until CGIS and the servicing legal office determines that a separate administrative investigation is needed. In many cases, a separate administrative investigation may not be necessary.

- (1) Managing information is critical for investigation integrity. If CGIS initiates an investigation, CGIS must be the first to advise the member of such investigation and/or provide the command with specific instructions on communicating with the member about the matter being investigated. Additionally, COs/OICs must consult with CGIS regarding any adverse administrative action to be taken against the member to ensure that such action does not negatively affect the ongoing CGIS investigation.
- (2) The absence of a positive, confirmed drug test result, which could include refusal to consent, does not preclude a command from finding a DI if the preponderance of the available evidence otherwise establishes that a member committed a DI.

2. Supporting Documentation and Expert Witness.

- a. *Supporting Documentation Requests.* When necessary, the CO/OIC may obtain any of the supporting documents or processes listed below, for legal or administrative action, at no cost. Written requests must be made to the laboratory servicing the Coast Guard (e.g., Tripler Laboratory) in memo format and must include the member's DoD ID number and laboratory accession number.
 - (1) Nanogram amount for a positive specimen (1 page: generally returned by facsimile);
 - (2) Commander's packet (about 10 pages: generally returned by facsimile);
 - (3) Litigation packet (about 55 pages: returned by Federal Express);
 - (4) Retest a specimen (in-house or private lab);
 - (5) Retention of positive specimen beyond 1 year;
 - (6) Analysis of adulterated specimen.
- b. *Expert Witness Request.* CO/OICs may request that the laboratory servicing the Coast Guard provide an expert witness, in person or through telephonic means, at court-martial proceedings and ASBs. The laboratory may also provide expert

assistance as needed for other matters at the request of CO/OICs. Fees for such services vary. The command is responsible for the expert's travel expenses.

3. Legal Rights. DIs are a violation of the UCMJ. Members suspected of violating the UCMJ are entitled to be advised of their rights under Article 31(b), UCMJ, before being questioned. See Reference (h).

H. **Determining a Drug Incident.**

1. Evidence Collection. In determining whether a DI occurred, a CO/OIC must consider all available evidence, including positive confirmed urinalysis, blood test, Hair Specimen Test (HST), or Oral Fluid Test (OFT) results and other approved additional drug tests; any prescription documentation; medical and dental records; eye-witness statements; admissions from the subject; and OMPF. Evidence relating to the military member's performance of duty, conduct, and attitude should be considered only to measure the credibility of the member's statement(s). If the evidence includes a positive drug-test result, the command must also verify that the test(s) was conducted in accordance with this Instruction and the procedures on the CG-PSC-PSD-FS CG portal site at <https://cg.portal.uscg.mil/units/psc/FS/default.aspx>. A failure to comply with the testing procedures in this Instruction and on the CG-PSC-PSD-FS CG portal site may impact the weight, if any, to be given to the evidence but such failure does not necessarily prohibit the command from considering that evidence. The CO/OIC may delay final determination to pursue any of the following options:
 - a. *Urinalysis/Additional Drug Test Collection*. The member could be asked to voluntarily consent to a urinalysis/additional test(s) as outlined in Paragraph 6.D, *Circumstances for Conducting Drug Testing*, of this Instruction.
 - b. *Reexamine Documentation*. The laboratory may be asked to reexamine the original test documentation for errors.
 - c. *Retest Sample*. The laboratory may be asked to retest the original specimen. Retesting requires additional drug confirmation documentation and reduces the urine or hair quantity available for future directed retesting (i.e., in the case of court-martial). This should not be a routine course of action.
2. Preponderance of Evidence Standard. The standard of proof for an administrative DI finding is the preponderance of the evidence standard, thus CO/OICs making these findings must use the preponderance of evidence standard. Preponderance of the evidence means that after all evidence is fairly considered, including its reliability and credibility, it is more likely than not that the military member intentionally committed the acts that constitute a DI. A preponderance of the evidence refers to its quality and persuasiveness, not the number of witnesses or documentation. A member's drug-use admission or a

positive-confirmed test result(s), standing alone, may be sufficient to establish intentional use and thus generally suffices to meet this standard. The command should consult with the servicing legal office prior to making a finding of DI or no-DI.

3. Drug Incident Finding. The command must take the following actions if, after the investigation is complete, as described in Paragraph 5.G., *Drug Incident Investigations*, of this Instruction, the CO/OIC determines that a DI occurred:
 - a. *Administrative Action*. The command must process the military member for separation per Reference (b), as appropriate. Cases requiring ASBs because of the character of discharge contemplated or because the member has served eight or more total years, must also be processed per Reference (b), as appropriate.
 - b. *Discretionary Disciplinary Action*. Military members who commit drug offenses are subject to disciplinary action under the UCMJ in addition to any required administrative separation action.
 - c. *Medical Treatment Eligibility*. Military members who are diagnosed with a “Drug Use Disorder-Severe,” must be offered treatment prior to discharge. Reference (a) outlines substance abuse medical referrals, screenings, and action policy. The member may still be discharged even if it is determined by a licensed medical professional that treatment is needed and the treatment is accepted by the member. Members who are diagnosed as drug/chemical-dependent, but refuse treatment, are required to sign an Administrative Remarks, Form CG-3307 (P&D – 18), entry acknowledging that they waive the right to chemical dependency treatment while in service. Medical treatment may be accomplished by the VA.
 - d. *Documentation and Reports*.
 - (1) Commands must use Administrative Remarks, Form CG-3307 (P&D – 13), to document a DI for both officers and enlisted members in accordance with Reference (m). The CO/OIC must sign the Administrative Remarks, Form CG-3307 (P&D – 13), because the CO/OIC holds the authority to determine whether the DI occurred. The Administrative Remarks, Form CG-3307 (P&D – 13), should explicitly state that the CO/OIC has determined by a preponderance of the evidence that the member committed a drug incident and should set forth the relevant facts and evidence upon which that determination was made. The Administrative Remarks, Form CG-3307 (P&D – 13), must be included in the member’s OMPF to document the DI.
 - (2) Performance Evaluations – Enlisted Members. An unscheduled EER is required to reflect a civil conviction, a military conviction, or action taken equivalent to a guilty finding (e.g., adjudication withheld; deferred prosecution; entry into a

pretrial intervention program; any similar disposition of charges that may include fines, probation, or community service). A disciplinary EER is required, in accordance with Reference (t), when the command takes final action on a command investigation and concludes, by a preponderance of the evidence, that the member committed the DI, as defined in this chapter. An acquittal or *nolle pros* in a civilian jurisdiction does not prohibit the command from determining that the member committed a DI using a preponderance of the evidence standard.

- (3) Performance Evaluations – Officers. OERs must reflect a civil conviction, a military conviction, or action taken equivalent to a guilty finding (e.g., adjudication withheld; deferred prosecution; entry into a pretrial intervention program; any similar disposition of charges that may include fines, probation, or community service). An OER is required, in accordance with References (u) and (v), when the command takes final action on a command investigation and concludes, by a preponderance of the evidence, that the member committed the DI, as defined in this chapter. An acquittal or *nolle pros* in a civilian jurisdiction does not prohibit the command from determining that the member committed a DI using a preponderance of the evidence standard.

4. Prescription Drugs.

- a. *Authorized Use.* “Authorized” is defined as the use of medication within the terms of a medical provider's prescription, including dosage, period of use, reasons for use, and frequency of use. Authorized use also includes other verified medical use authorizations for a substance that caused a positive urinalysis or additional drug testing result, such as medication administered during an emergency room visit.
 - (1) Medications that are prescribed without a specified end date must be presumed authorized if taken within six months of the prescription issue date.
 - (2) Medications without a specified end date that are taken after six months are presumed to be unauthorized, and the CO/OIC must investigate whether a DI occurred. If the CO/OIC determines that the medication use is authorized, the CO/OIC must make a finding of “no-drug incident” in accordance with Paragraph 5.H.5, *No-Drug Incident Finding*, of this Instruction.
- b. *Unauthorized Use.* The use of prescription drugs is unauthorized if it is without legal justification or authorization. Commands should contact their servicing legal office if there are questions about whether the use of prescription drugs was without legal justification or authorization.

c. *Documentation.*

- (1) When a positive drug test result is received by a CO/OIC or when an CO/OIC requests a clinic record review for a member, a servicing HSWL Clinic medical officer must review the member's medical record for prescriptions of drugs that may have caused the positive test because a prescribed or medically administered medication may produce positive drug-test results.
- (2) The CO/OIC will prepare a "No-Drug Incident" memo in accordance with Paragraph 5.H.5, *No-Drug Incident Finding*, of this Instruction when the CO/OIC determines by a preponderance of evidence that a positive drug test is due to the authorized use of a prescription drug. This memo must include the following: the positive drug test result, a summary of the medical officer's evaluation results; the drug prescribed (or administered); the date prescribed (or administered); and the date the medical officer completed the evaluation.

d. *Federal Regulations. The Coast Guard drug-abuse policy supersedes any foreign, state, or local law that may permit the use, possession, distribution, or prescription of a controlled substance.* As members of a Federal law-enforcement agency, Coast Guard members must comply with Federal regulations when there is a conflict with laws promulgated by a state or foreign authority.

5. "No-Drug Incident" Finding. The CO/OIC must make a finding of no-drug incident and close the investigation in the event the CO/OIC concludes a drug-test result was attributed to a military member due to an administrative error, faulty chain-of-custody, evidence of tampering, that the use was not wrongful (e.g., prescribed medication, unknowing ingestion), lack of evidence, or any other reason under this Instruction. In addition, the following actions must be taken by the CO/OIC:

- a. *Screening, Counseling, or both.* The command may determine (via substance abuse screening and evaluation) whether psychiatric, medical, or chemical dependency treatment (e.g., cases of abuse, prescription or OTC medication overuse) is warranted. At a minimum, the CO/OIC must review with the member the drug-abuse training previously provided. The CO/OIC also must discuss the Commandant's policy on drug abuse, the physical and psychological dangers of drug misuse, and the sources of self-help available to maintain a lifestyle free of involvement with and exposure to drugs. The command must arrange for the member to participate in Prime for Life, myPRIME, or equivalent training program in accordance with Reference (a) if the command determines that retaining the member is necessary. The command must initiate an investigation in accordance with Paragraph 5.G, *Drug Incident Investigations*, of this Instruction if the command determines that a DI may have occurred during the course of the screening or counseling.

- b. *Letter Report.* COs/OICs must forward the "No-Drug Incident" memo for all cases involving positive drug-test results to Commander (HQS-SMB-CGPSC-PSDFS-DRUGTEST@uscg.mil) within 12 days of conclusion. DIs or investigations that do not include a positive drug-test results do not require CG-PSC-PSD-FS submission. The letter must indicate the drug(s) identified in the specimen and the reason for the no-drug incident determination. However, the letter must not identify member(s) by name, DoD ID number, or any other means because this information is only used for statistical purposes.
6. Withdrawing a Discharge Recommendation. If, subsequent to making a determination that a DI occurred, a CO/OIC is made aware of new information and determines that, in fact, a DI did not occur, the CO/OIC may withdraw a discharge recommendation up until the date on which that discharge is effected. The CO/OIC must consult with CG-PSC prior to making a decision to withdraw the discharge recommendation.

CHAPTER 6 TESTING FOR CONTROLLED AND PROHIBITED SUBSTANCES

A. Objectives.

1. Education and Prevention. Enhance mission-readiness and foster an environment free from controlled and prohibited substances through a comprehensive program of education, prevention, and deterrence.
2. Detection and Deterrence. Establish and maintain a reliable substance inspection and testing program to detect and deter the use of controlled and other prohibited substances. A robust drug inspection program maintains operational and personnel readiness preserving the safety and security of the total Coast Guard workforce. This is best achieved through a reliable means of random and frequent substance inspection and testing of Coast Guard military members.
3. Data Collection. Produce data to measure controlled and prohibited substance use incidents among Coast Guard military members. Urinalysis and additional drug testing are examples of common practices to detect and deter wrongful substance use and, as such, units must conduct frequent and random testing throughout the FY in accordance with FY Drug Test Allocations guidance messages published by the All Coast Guard Personnel Service Center (ALCGPSC).

B. Types of Substances. For the purposes of this Instruction, there are two types of substances the use of which may subject a Coast Guard member to administrative discipline or criminal punishment under the UCMJ: (1) a controlled substance or drug, and (2) a prohibited substance.

1. Drug/Controlled Substance. A drug or a controlled substance is a substance or immediate precursor that has potential for misuse, abuse, or dependence as defined in 21 U.S.C. § 802(6) and (12) or referenced in the UCMJ (10 U.S.C. § 912a), Article 112a.
2. Prohibited Substance. A prohibited substance is a substance that does not fall under the definition of a drug or a controlled substance in 21 U.S.C. § 802(6) and (12) but is prohibited from use by policy. This encompasses, but is not limited to, the inhalation, injection, consumption, application to skin, or other introduction to the body of any mood altering substance or compound, existing now or created in the future, including:
 - a. Analogues of controlled or synthetic-substance, for example, designer drugs invented or yet to have been composed, such as products containing synthetic cannabinoids, synthetic marijuana, synthetic cannabidiol (CBD), spice, fentanyl, that are not otherwise controlled substances;
 - b. Substances that are not or no longer controlled but pose a risk of consumption,

absorption, or otherwise induction into the body an excessive amount of a controlled substance, such as performance-enhancing drugs explicitly listed in Classes S1, S2 and S4 of the World Anti-Doping Code Prohibited List and tetrahydrocannabinol (THC). Such substances include, but are not limited to, hemp and hemp-derived CBD including Delta-8, Delta-9, and Delta-10 THC as defined in Paragraph 7.A.2, *Marijuana and Tetrahydrocannabinol (THC)*;

- c. Inhalants;
- d. Propellants;
- e. Solvents;
- f. Household chemicals;
- g. Substances used for huffing;
- h. Prescription or OTC medications in excess of prescribed dosage; and,
- i. Any naturally occurring intoxicating substances, such as, *Salvia divinorum* or products containing *Salvia divinorum*.

C. Roles and Responsibilities.

1. Commander (CG-PSC-PSD-FS). The Program Manager (PM) has overall responsibility for the maintenance and success of the Coast Guard Drug Testing Program. The PM has authority and responsibility to:
 - a. Establish and verify that the Coast Guard is maintaining a robust program capable of identifying current and future needs. The PM must develop and sustain training to properly qualify personnel to perform their duties throughout the drug testing process;
 - b. Develop and sustain on-hand reference material focused on testing procedures, such as desk guides and checklists, to reduce discrepancies and untestable samples;
 - c. Maintain normal communications with the MAJCOMs to include allocating members/units geographically and determining fleet-wide trends; and,
 - d. Maintain records of pertinent correspondence with the DoD Forensic Toxicology Drug Testing Laboratory (FTDTL) facility and WebDTP access documents for all MAJCOM/DTC/ADTCs, including but not limited to System Authorization Access Request (SAAR) Form DD-2875 series, designation memos, training documentation, and other documentation necessary to record a unit's program.
2. Commanding Officers (COs) and Officers-in-Charge (OICs). COs/OICs have authority and responsibility to:

- a. Direct their unit members to submit to a unit's Drug Testing Program;
 - b. Enforce the provisions of this Instruction based upon the findings of such urinalysis, blood test, HST, OFT, or other approved additional drug tests;
 - c. Contract with a DoD or Department of Health and Human Services (DHHS) certified laboratory for HST, OFT, or steroid and controlled performance enhancing drug testing;
 - d. Notify MAJCOMs and local CGIS office within 24 hours from report of a positive OFT, HST, or steroid test;
 - e. Monitor the CGBI Drug Testing Report to ensure that all unit personnel (100 percent assigned) are urinalysis tested at least once during the FY, in accordance with Paragraph 6.D.1.d., *Random Selection Testing Requirements*, of this Instruction; and,
 - f. Ensure all positive results are reported and processed according to this Instruction and the procedures on the CG-PSC-PSD-FS CG portal page at <https://cg.portal.uscg.mil/units/psc/FS/default.aspx>.
3. Major Drug Testing Coordinator (MAJCOMs). MAJCOMs serve as an important conduit of information and oversight linking individual units to the Coast Guard Drug Testing Program. MAJCOMs provide critical supervision and advisement for the drug testing program, therefore MAJCOM will have the rank of E-7/GS-09 or above. If the MAJCOM is designated for multiple drug testing roles, the MAJCOM may only perform one drug testing role in an inspection. MAJCOMs' responsibilities for all units designated under their Base Area Code (BAC) include:
- a. Review monthly reports provided by the DoD Internet Forensic Toxicology Drug Testing Laboratory (iFTDTL) Web Drug Testing Portal (WebDTP) and forward reports to all designated units' DTCs/ADTCs;
 - b. Provide designated units with urinalysis test results within two days from appearing in the iFTDTL WebDTP;
 - c. Report positive results to designated units and ensure units have notified their CO/OIC and local CGIS office within 24 hours from notification of a positive urinalysis test;
 - d. Assist designated units with rosters and review units' urinalysis access documentation for correctness before submitting it to the PM;
 - e. Monitor and track designated unit testing quotas through iFTDTL WebDTP to ensure units are meeting quarterly and yearly testing requirements;

- f. Notify the PM of the units that do not meet the quarter or annual quotas;
 - g. Review allocations showing all designated units to ensure units are accurately represented;
 - h. Submit an updated unit listing to the PM each August;
 - i. Act as the Point of Contact (POC) for all questions by unit DTC/ADTCs regarding the Drug Testing program;
 - j. Monitor the CGBI Drug Testing Report to ensure that all unit personnel (100 percent assigned) are urinalysis tested at least once during the FY, in accordance with Paragraph 6.D.1.d., *Random Selection Testing Requirements*, of this Instruction; and,
 - k. Maintain records of pertinent correspondence of WebDTP access documents for their unit, including but not limited to designation memos, training documentation, positive drug testing results, a roster of each coordinator attached to each unit designated, and other documentation necessary to record a unit's program. Records must be maintained in accordance with the procedures on the CG-PSC-PSD-FS CG portal site at <https://cg.portal.uscg.mil/units/psc/FS/default.aspx>.
4. Drug Testing Coordinators (DTC). The DTC replaces the Urinalysis Coordinator (UC) within this program and is responsible for the Unit's Drug Testing Program maintenance and administration. DTC duties must reside with the unit's Executive Officer (XO), Deputy, or Executive Petty Officer (XPO). COs/OICs must designate, in writing, the DTC and ADTC in the Command Collateral Duty List. The designation of DTC is non-delegable. However, units with designated Commanding Officers of Military Personnel (e.g., Area Personnel Division Chiefs, Sector Logistics Department Heads, Base Personnel Support Department Heads) may assign DTC duties to these officers, provided they are Lieutenant Commander (O4) or above. One DTC will be identified per unit and will be responsible and accountable for the oversight and management of the Unit Drug Testing Program. If the DTC is designated for multiple drug testing roles, the DTC may only perform one drug testing role during an inspection. The DTC's responsibilities are:
- a. Ultimately responsible for the Unit Drug Testing Program maintenance and administration, including training of DTOs, SCs, SVs, and ADTCs, and shipping of uncompromised specimens to Tripler Army Medical Center (TAMC) FTDTL;
 - b. Ensures processing procedures in the contracted laboratory's procedures and on the CG-PSC-PSD-FS CG portal page at <https://cg.portal.uscg.mil/units/psc/FS/default.aspx> are followed;
 - c. Supervises the specimen collection process;

- d. Reviews drug testing reports;
 - e. Makes testing register entries in WebDTP, if the DTC is coordinating the test;
 - f. Knows the references and responsibilities associated with the duty of a DTC, including the Personnel Service Center (PSC) Drug Testing link:
<https://cg.portal.uscg.mil/units/psc/FS/Drug%20Testing/Forms/AllItems.aspx>;
 - g. Works with procurement to order supplies;
 - h. Coordinate with the other unit DTC/ADTC for members who are approved for teleworking, remote work, or assigned to Operating Locations (OL) away from their parent unit, in accordance with References (q) and (r) and Paragraph 6.D.1.f, *Telework and Remote Work*, of this Instruction;
 - i. Maintain records of pertinent correspondence with the DoD FTDTL facility and WebDTP access documents for their unit, including but not limited to designation memos, training documentation, positive drug testing results, copies of chain of custody documentation, and other documentation necessary to record a unit's program. Records must be maintained in accordance with the procedures on the CG-PSC-PSD-FS CG portal site at <https://cg.portal.uscg.mil/units/psc/FS/default.aspx>;
 - j. Identify all members that are exempt in accordance with Paragraph 6.D.1.e, *Exceptions to Sample Provision*, of this Instruction. The DTC must ensure that excusals are documented in accordance with the procedures on the CG-PSC-PSD-FS CG portal site at <https://cg.portal.uscg.mil/units/psc/FS/default.aspx>; and,
 - k. Removed content per Presidential Executive Order No.14151 – black ink redaction overrides content
5. Alternate Drug Test Coordinator (ADTC).
- a. ADTCs must be at pay grade E-6 or higher or a member of the Command Cadre;
 - b. Units are authorized two ADTCs. Requests for more than two ADTCs must be sent to PSC-PSD-FS for review and approval;
 - c. Each ADTC must be designated in writing annually. At least one ADTC must have access to the testing register in WebDTP and specimen collection materials;
 - d. ADTCs are responsible for implementing the processes and procedures set forth in this Instruction, the contracted laboratory's procedures, and on CG-PSC-PSD-FS's CG portal site at <https://cg.portal.uscg.mil/units/psc/FS/default.aspx>;
 - e. ADTCs are responsible for making testing register entries in WebDTP, if the ADTC

- is coordinating the test;
- f. If an ADTC is designated for multiple drug testing roles, the ADTC may only perform one drug testing role during an inspection;
 - g. Coordinate with the other unit DTC/ADTC for members who are approved for teleworking, remote work, or assigned to OLs away from their parent unit in accordance with References (q) and (r) and Paragraph 6.D.1.f, *Telework and Remote Work*, of this Instruction;
 - h. Maintain records of pertinent correspondence with the DoD FTDTL facility and WebDTP access documents for their unit, including but not limited to designation memos, training documentation, positive drug testing results, copies of chain of custody documentation, and other documentation necessary to record a unit's program. Records must be maintained in accordance with the procedures on the CG-PSC-PSD-FS CG portal site at <https://cg.portal.uscg.mil/units/psc/FS/default.aspx>;
 - i. Identify all members that are exempt in accordance with Paragraph 6.D.1.e, *Exceptions to Sample Provision*, of this Instruction. ADTC must ensure that excusals are documented in accordance with the procedures on the CG-PSC-PSD-FS CG portal site at <https://cg.portal.uscg.mil/units/psc/FS/default.aspx>; and,
 - j. Removed content per Presidential Executive Order No.14151 – black ink redaction overrides content
[REDACTED]
6. Second Verifier (SV). The SV is designated in writing by the command and is a Coast Guard member whose main responsibility is to conduct a secondary review of the specimens collected during an inspection. This includes, but is not limited to checking the bottle for tightness, ensuring bottles are completely dry before packaging, ensuring samples are packaged correctly, and providing assistance to the DTC/ADTC as needed. The SV's duties and responsibilities are outlined in the urinalysis checklist that is located on the CG-PSC-PD-FS CG portal site at: <https://cg.portal.uscg.mil/units/psc/FS/default.aspx>. The requirements for an SV are:
- a. SVs must be at pay grade E-5 or higher or a member of the Command Cadre;
 - b. Units must use an SV to assist in drug testing procedures;
 - c. Units may designate as many SVs as the unit needs; and,
 - d. If an SV is designated for multiple drug testing roles, the SV may only perform one drug testing role during an inspection.
7. Drug Testing Observer (DTO). A DTO replaces the former Urinalysis Observer (UO). The DTO is designated in writing by the command and is a Coast Guard member whose

main responsibility is to escort members selected for testing into the designated area for the purpose of observing their specimen collection.

- a. DTOs must be a responsible and trustworthy member of the same [redacted] sex as the members providing specimens. In circumstances where a DTO with the same sex is not available, the DTC/ADTC must coordinate testing with another unit. [redacted] removed content per Presidential

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- b. The main duties of DTOs are to:

- (1) Escort service member to and from the restroom;
- (2) Observe specimen collection;
- (3) Testify at an administrative hearing or at a court-martial, as needed; and,
- (4) Follow all other procedures in the contracted laboratory's procedures and on the CG-PSC-PSD-FS CG portal site at:
<https://cg.portal.uscg.mil/units/psc/FS/default.aspx>.

8. Specimen Collectors (SC). The SC must be designated in writing by the CO/OIC in the Command Collateral Duty List and is a Coast Guard member whose primary responsibility is to collect HST and OFT samples. The SC must be of the same sex as the member being tested while the sample is collected. In circumstances where a SC with the same sex is not available, the DTC/ADTC must coordinate testing with another unit.

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- a. The main duties of SCs are to:

- (1) Obtain and process hair and oral fluid samples from a service member in accordance with the contracted testing facility's procedures; and,
 - (2) Testify at an administrative hearing or at a court-martial, as needed.
9. Testing of DTCs, ADTCs, SVs, SCs, and DTOs. All personnel involved in collection and shipment of samples will not place and/or ship their own samples in the same batches

they are responsible for collecting or shipping. The chain of custody of samples must be maintained, documented, and confirmed by the DTC.

- a. An ADTC, DTC, SV, SCs, and DTOs (“Inspection Team”) from another unit must be used when the command requires a unit sweep, as defined in Paragraph 6.D.1.b, *Application*, and the unit’s inspection team is being tested as part of that sweep. An ADTC or DTC from another unit must be used when the command requires testing of its own DTCs and ADTCs. The command must coordinate with the other unit to provide random drug testing for unit coordinators.
 - b. Commands may temporarily defer the requirements in Paragraph 6.C.9.a of this Instruction to the unit’s ADTC or DTC if remote or isolated assignments make coordination unreasonably difficult or not possible. The unit must have at least one DTC, ADTC, and SV, and several DTOs and SCs. The ADTC will process the sample without the DTC’s presence or influence in circumstances where the DTC is selected for random drug testing. The same applies to the DTC if an ADTC is randomly selected. Examples of influence include, but are not limited to DTCs removing themselves from “to-be-tested” lists, and watching labeling, taping, or shipping their own sample(s). The selected DTC, or ADTC, will have their sample collected, labeled, and shipped by an authorized DTC or ADTC like any other member being subjected to testing. If both the DTC and the ADTC are selected for testing, randomization to designate a coordinator must be established. The DTC or ADTC that is not randomly selected to provide a sample must be designated to coordinate testing in accordance with CG PSC PSD FS's procedures found on their portal site at <https://cg.portal.uscg.mil/units/psc/FS/default.aspx>.
 - c. Access to the drug test ledger and specimen collection materials must be limited to the CO/OIC, XO/XPO, DTC, and ADTCs, when such access is necessary.
10. DoD Commands. Coast Guard members assigned to DoD commands are subject to the respective Service’s drug administration and testing program. DoD members serving in the Coast Guard are subject to Coast Guard’s drug administration and testing program, unless otherwise dictated by the individual terms of the assignment. If a Coast Guard member’s urinalysis, blood test, HST, OFT, or other approved additional drug test reports a positive result, the DoD command generally immediately notifies the member’s cognizant Coast Guard PM, who follows the procedures outlined in Chapter 5, *Drug Incidents*, of this Instruction.
- D. Circumstances for Conducting Drug Testing.** The procedures described below apply to the command drug testing programs and are not binding on investigations conducted by CGIS or other military criminal investigative organizations.

1. Administrative Inspections.

- a. *Designed Purpose.* Administrative inspections are designed to determine and maintain the unit's security, military readiness, and good order and discipline in accordance with the Military Rules of Evidence (M.R.E) 313(b). M.R.E. 313(b) states that an inspection is an examination of the whole or part of a unit, organization, installation, vessel, aircraft, or vehicle, including an examination conducted at entrance and exit points, conducted as an incident of command the primary purpose of which is to determine and to ensure the security, military fitness, or good order and discipline of the unit, organization, installation, vessel, aircraft, or vehicle. An inspection may include, but is not limited to, an examination to determine and to ensure that any or all of the following requirements are met: that the command is appropriately equipped, functioning properly, maintaining proper standards of readiness, sea or airworthiness, sanitation and cleanliness; and that personnel are present, fit, and ready for duty. Such an inspection is allowed even if it was directed immediately following the report of a specific offense in the unit and was not previously scheduled. An order to produce body fluids, such as urine, is permissible in accordance with this rule.
- b. *Application.* M.R.E 313(b) allows drug testing for administrative inspections using urinalysis or additional drug testing when they are primarily conducted for the designed purposes and are based on a random selection of members or units ("unit sweeps") to be inspected.
 - (1) Members of the Reserve component serving in any duty status are subject to the same random selection or unit sweeps for an administrative inspection as their active duty counterparts;
 - (2) An inspection that meets these requirements does not require a member's consent, probable cause, or search authorization, to collect a specimen;
 - (3) Substance testing that targets certain members or is conducted for the primary purpose of obtaining evidence for use in a trial by court-martial or in other disciplinary proceedings is not permitted for administrative inspections and requires probable cause, search and seizure authorization.
- c. *Scope.* The inspection's scope may include military personnel of the whole unit, installation, vessel, or aircraft, or only part of the unit (e.g., duty section, division, building occupants, etc.), provided that part of the unit includes enough members for the inspection to not be viewed as targeting a particular individual or small group of individuals. An administrative inspection may be conducted with or without a notice to the inspected, but notice is not required or recommended.

d. *Random Selection Testing Requirements.*

- (1) Random selection is a statistical specimen selection method in which all possible specimens have equal probability of selection. The purpose is to provide all military members with the same participation probability in the controlled and prohibited substance testing program. Random sampling allocations must be based on the number of personnel assigned to the unit. The DoD iFTDTL software may be used in the selection for random urinalysis testing.
- (2) All active duty and reserve service members in a drilling status must be randomly urinalysis tested, at a minimum, once annually. Commands must conduct an end of FY unit or sub-unit sweep of any individuals not tested during the FY to ensure all service members assigned to the unit have been randomly tested at least once annually. All (100 percent assigned) personnel assigned to a unit at the end of the FY must have been successfully tested at least once during the FY.
- (3) Units must test 25 percent of assigned personnel quarterly. It is recommended that units test at least 10 percent of assigned personnel monthly until the quarterly requirement is met.
- (4) DTCs or ADTCs must contact their servicing legal office and CG-PSC-PSD-FS for guidance if members are not able to provide a sample for random urinalysis testing and the members do not meet the exceptions in Paragraph 6.D.1.e., *Exceptions to Sample Provision*, of this Instruction.

e. *Exceptions to Sample Provision.* All military personnel randomly selected for urinalysis and/or additional drug testing must submit a sample unless they are on:

- (1) Previously approved leave, including non-chargeable rest and recuperation leave. Leave requested after notification of a urinalysis or additional drug testing must be denied;
- (2) Temporarily Assigned Duty (TAD/TDY)/Permissive Orders;
- (3) Pre-approved administrative absence including elective medical care;
- (4) Rotational duty status and considered off-duty;
- (5) Post deployment mobilization respite absence; or,
- (6) Medical provider-directed sick in quarters/sick at home duty status.

f. *Telework and Remote Work.* Military personnel teleworking, using remote site work

- locations, or assigned to operating locations away from their parent unit in accordance with References (q) and (r) are NOT excused from unit-directed urinalysis or additional drug testing. The DTC/ADTC for a member's assigned unit must coordinate with the DTC/ADTC that is geographically closest to the member's official worksite to perform the urinalysis or additional drug test *prior to* a member's selection for urinalysis or drug testing. Teleworking or remote site working members must report to the geographic unit that has been designated to perform their urinalysis or additional drug testing. Units must consult with CG-PCS-PSD-FS for direction in situations where coordination between units is not possible (such as geographically disbursed remote work locations).
- g. *Refusal to Provide a Specimen.* The DTC must notify the appropriate command authority if a member refuses to provide a specimen,. The command representative should reiterate the order to provide a specimen to the member in front of a witness. In doing so, the command representative should ensure the member understands that failure to provide a sample would constitute the violation of a lawful order and could subject the member to disciplinary action under the UCMJ, as well as administrative action up to and including administrative separation. Further refusal constitutes a DI and a violation of a direct order that will subject the member to disciplinary action under the UCMJ. Possible actions include court-martial proceedings and processing for separation. Commands should consider giving a member a witnessed written order that requires the member to not shave their head or body prior to a sample being taken if the possibility of hair specimen sampling exists.
2. Consent-Based Testing. Substance testing may be conducted at any time and for any reason if the member voluntarily consents to provide a specimen. When requesting consent, the member must be advised that he or she may decline to submit a specimen; limit consent to a certain time, place, or specimen to be collected; and that they may revoke their consent at any time. Consent must be obtained in writing. Consent is not voluntary if a member submits to the color of authority of law enforcement personnel or command (the appearance of authority or legal right to take action against a member), or provides a specimen after the command orders a drug test should the member refuse to consent.
3. Search and Seizure Authorization. A military member may be ordered to submit to a substance test if there is probable cause to believe the member used a controlled or prohibited substance and a substance test will produce evidence of such use. Commands must obtain a search and seizure authorization before collecting a specimen unless there are exigent circumstances creating a reasonable belief that the evidence of substance use will be destroyed upon delay. **Commands must consult with their servicing legal office prior to executing a drug test under this subparagraph.**

4. Valid-Medical Purpose Testing.

- a. *Occurrence.* Qualified medical personnel may direct drug testing for diagnostic (mild, moderate, or severe) or treatment purposes during a medical examination (emergency care, periodic physical examinations, and such other medical examinations as are necessary for diagnostic or treatment purposes). Follow-up tests to confirm a diagnosis or to monitor a condition are included in this category. Such testing cannot exceed what is necessary for the medical purpose. Substance testing directed by the member's command (such as a fitness-for-duty test) does not fall within this subsection. This testing may be voluntary or involuntary.
- b. *Limits on Use of Patient Records.* A positive biometric test (e.g. urinalysis, blood, OFT), or other record generated in the course of a substance abuse treatment program may not be disclosed or used in any administrative or criminal proceeding, consistent with 42 C.F.R. § 2.12 and § 2.13. These protections begin at the time the member self-refers or is command directed to a substance abuse treatment program. This provision does *not* prohibit commands from documenting a Drug Incident if, in the course of follow-up or evaluation testing, the member tests positive for a banned substance. Information obtained as part of follow-up or evaluation testing may be used as the basis for a DI, even though the testing is consistent with a medical treatment plan.

5. Fitness-for-Duty Test. Fitness-for-Duty Test includes Evaluation Testing, Command-Directed Testing, and a Reportable Mishap Testing. These tests are used to determine a member's fitness for duty or need for counseling, rehabilitation, or medical treatment.

- a. *Command-Directed Testing.* CO/OICs may order command-directed testing of Coast Guard members when the member's uncharacteristic or bizarre behavior (such as belligerence, mood lability, or impaired judgment), breaches of discipline, and other similar acts give rise to a reasonable suspicion of controlled or prohibited substance use.
 - (1) A reasonable suspicion is a less demanding standard than probable cause and is defined as something more than a vague suspicion or hunch. Reasonable suspicion requires a minimal level of justification and can arise from information less reliable than that required to show probable cause. Unusual behavior or conduct that a CO/OIC should consider includes but is not limited to: unauthorized absences; safety violations; disobeying direct orders; apprehension or investigation for drug offenses or intoxicated driving; involvement in crimes of violence; reckless equipment operation; involvement in a serious incident or accident in which unusually careless acts were performed; or other incidents involving serious discipline breaches. While an

instance of unusual behavior or conduct alone is not necessarily sufficient to constitute a reasonable suspicion, such behavior or conduct must be considered within the totality of the circumstances.

- (2) The CO/OIC is authorized to order this test and that authority may be delegated to an XO/XPO or a Command-Duty officer. Fitness-for-duty substance test results may be used to refer a member for administrative separation action. Results may also be used for impeachment or rebuttal in court-martial proceedings, subject to M.R.E. However, commands may not use a Fitness-for-Duty drug test to take punitive action, including non-judicial punishment, against a member under the UCMJ.
- b. *Evaluation Testing.* CO/OICs may order evaluation testing of Coast Guard members when a member's urine specimen, blood, hair, or oral fluid is reported as confirmed positive for the presence of controlled or prohibited substance(s) or when it is prescribed in a member's medical treatment plan. Re-testing of negative samples is not authorized, unless the selection of the samples is done on a random basis as discussed at Paragraph 6.D.1.d, *Random Selection Testing Requirements*.
- (1) The CO/OIC must adhere to the testing frequency and requirements outlined in a member's medical treatment plan. The medical treatment plan must be prescribed by a CG medical officer and issued in accordance with Reference (a).
 - (2) When a medical treatment plan is not prescribed to a member, a CO/OIC may order evaluation testing to be conducted for a two- to six-month duration. If urinalysis is the selected testing method, no more than 16 specimens may be taken. For example, two specimens per week for eight weeks; one specimen per week for 16 weeks; or up to 16 total specimens over a six-month period collected at irregular intervals. If HST is selected, no more than three testing submissions may be taken over a six-month period.
 - (3) Except under the conditions outlined in Paragraph 6.D.4.b, *Limits on Use of Patient Records*, of this Instruction, the original positive drug test result may still be used as a basis for disciplinary action under the UCMJ, administrative separation, and discharge characterization, if supported by the justification for the original test, such as, probable cause, administrative inspection, consent, or fitness-for-duty test. See Paragraph 6.D, *Circumstances for Conducting Drug Testing*, of this Instruction.
 - (4) Depending on the basis for Command-Ordered Testing, positive results from that test may be used for any purpose, including disciplinary action under the UCMJ, administrative separation, and discharge characterization in

administrative separation proceedings. See Reference (b), Chapter 1. Commands must document Command-Ordered evaluation testing in Administrative Remarks, Form CG-3307 (P&D – 06).

- c. *Reportable Mishap Testing.* A reportable mishap, as defined in Reference (e) is any unplanned, unexpected, or unintentional event causing injury, occupational illness, death, or material loss or damage. Specimens of urine, blood, hair, oral fluid, and/or breath must be collected from all members involved in a Class A or B mishap in accordance with Reference (e). Collection of the specimen following Class C, D, and E mishaps is at command discretion with certain exceptions listed in section E.5(d)(2) of Chapter 3 of Reference (e). After-mishap testing results may be used in administrative separation proceedings following Commandant (CG-11) and (CG-094) approval for release of information, in accordance with section G.2 of Chapter 3 of Reference (e).
6. Drug Testing Conducted in Conjunction with Training. All accessions and Coast Guard members ordered to attend Coast Guard training are subject to a medical-purpose examination that may include urinalysis, blood test, HST, OFT, or approved additional drug tests. They are also subject to random substance testing through administrative inspections while assigned to a Coast Guard training command. Training commands must conduct testing as follows:
 - a. *Initial Enlistment/Commission.*
 - (1) Each person applying for an initial enlistment to include recruits or appointment as cadets, officer candidates (including Reserve Officer Indoctrination candidates), and direct commission officers must typically be counseled on the policies in this Instruction no less than 30 days prior to their scheduled departure date to a training facility. The recruiting office will counsel the individual at the soonest possible date where counseling cannot occur at least 30 days prior to the scheduled departure date. Counseling must be documented in an Administrative Remarks, Form CG-3307 (P&D – 06), and submitted to Coast Guard Recruiting Command (CGRC). Counseling is strictly an awareness mechanism to ensure the individual is aware of the provisions that they are subject to under this Instruction.
 - (2) Each person applying for an initial enlistment to include recruits or appointment as cadets, officer candidates (including Reserve Officer Indoctrination candidates), and direct commission officers must be tested within 72 hours after reporting to a training facility. Individuals who have been directed to “quarantine” or “isolate,” as those terms are defined below, by a Coast Guard health care provider are exempt from this policy during the duration of their

quarantine or isolation. Individuals must, however, be tested within 72-hours after being released from “quarantine” or “isolation” and reporting to a training facility. Instances where an individual receives a positive test for Delta-8 THC, as defined in Paragraph 7.A.2, *Marijuana and Tetrahydrocannabinol (THC)*, following an Initial Enlistment/Commission drug test will result in a No-Drug Incident in accordance with Paragraph 5.H.5, “*No-Drug Incident*” Finding.

- (a) Quarantine means the separation of an individual or group of individuals who has been exposed to a communicable disease, but is not yet showing the symptoms of illness, from others who have not been so exposed, in such manner and place to prevent the possible spread of the communicable disease.
 - (b) Isolation, in opposition to quarantine, means the separation of an individual or group of individuals infected and/or suspected to be infected with a communicable disease from those who are healthy in such a place and manner to prevent the spread of the communicable disease.
- b. “*A*” *School Students*. All training centers conducting “A” schools must test “A” school students within 96 hours of the students’ reporting to a training facility. Coast Guard members who have been directed to “quarantine” or “isolate,” as those terms are defined in Paragraph 6.D.6.a.(2) (a) and (b), by a Coast Guard health care provider are exempt from this requirement during the duration of their quarantine or isolation. “A” school students must be tested within 96 hours after being released from “quarantine” or “isolation” and reporting to a training facility.
 - c. *Duty Under Instruction (DUINS)*. DUINS students are subject to the same random testing as all military members. Resident school students attending an institution sponsored by another branch of the Armed Forces are subject to the standards required by that institution within the command to which they are attached as well as the sponsoring Coast Guard PM. All other students are subject to the requirements set forth by the PM, MAJCOM, and DTC within the jurisdiction in which the member resides or attends school.
- 7. Prior Service Members upon Return to Active Duty. All military members who report to active duty, either active duty or Selected Reserve, who have a break in service greater than six months, may be tested by consent, at a medical-purpose examination, for fitness-for-duty, and/or during an administrative inspection.

E. Sample Adulteration, Substitution, Dilution and Refusal to Follow Contracted Guidelines

1. Actions upon Suspicion of Tampering. DTOs who suspect that a member tampered with their specimen (e.g., the observer saw them put something in the specimen), must report it to the DTC/ADTC conducting the testing, who will then secure the specimen and notify the CO/OIC or appropriate chain-of-command. The CO/OIC or designee will direct the member to provide another specimen under the "Command-directed" premise code. Both the original and new specimen will be sent to the screening laboratory for testing.
2. Drug Screening Laboratory. The drug screening laboratory is able to detect adulterated or substituted samples. The laboratory will notify the command when a sample is suspected to contain adulterants. The command may request that the laboratory send the specimen to another laboratory for further adulterant testing and forward the results to the requesting command.
3. UCMJ Implications for Inspection Teams and tested military members. Any Inspection Team member (DTC, ADTC, DTO, SV, or SC) and tested military members who knowingly fail or refuse to follow this Instruction or the procedures of a contracted testing facility may be subject to discipline under UCMJ. A member who knowingly tampers with their or anyone else's specimen, refuses to provide a specimen, and/or causes, entices, or attempts to influence an Inspection Team member to refrain from observing the collection of the specimen or performance of any other related duties may be subject to discipline under the UCMJ.

F. Authorized Drug Testing.

1. Urinalysis. Urinalysis testing is the procedure employed to obtain urine samples under controlled conditions, maintain a chain of custody on each sample, and scientifically analyze the samples to detect the presence of controlled/prohibited substances or their metabolites. Urinalysis testing is the Coast Guard's primary form of drug testing. Authorized additional forms of drug testing covered in this Chapter may supplement the urinalysis testing program but must not replace the urinalysis testing requirements in Paragraph 6.D.1.d. *Random Selection Testing Requirements*. The authorized additional forms of drug testing covered in Paragraph 6.F, *Authorized Drug Testing*, in this Instruction may require unit funding.
 - a. *Frequency.* All active duty and reserve service members in a drilling status must be randomly urinalysis tested, at a minimum, once annually in accordance with Paragraph 6.D.1.d. *Random Selection Testing Requirements*.
 - b. *Urinalysis Procedures.* Commands must use the procedures on CG-PSD-PSC-FS's

CG portal site at <https://cg.portal.uscg.mil/units/psc/FS/default.aspx> to conduct urinalysis testing, which includes best practices and guidance for use by all members performing and participating in this program.

2. Hair Specimen Testing (HST). HST is an authorized additional form of drug testing. HST is the procedure used to obtain a hair sample under controlled conditions, maintain a chain of custody on each sample, and scientifically analyze the samples to detect the presence of controlled substances and prohibited non-controlled substances or their metabolites. HST is a valuable tool to complement urinalysis in detection and deterrence of drug use. This provision does not alter the existing CGIS authority to use HST to conduct drug-related investigations based on consent or probable cause. The HST procedures described below apply to Command-directed drug testing for administrative inspections.
 - a. *Collecting Hair Sample Specimens*. The DTC, ADTC, or SC will document and process the collection of each sample in accordance with the procedures of the contracted testing facility.
 - b. *HST Results*. Positive HST results may constitute a DI and must be reported to the MAJCOM and the local CGIS office in accordance with Paragraph 6.C.2, *Commanding Officers (COs) and Officers-in-Charge (OICs)*. This requirement does not apply to HSTs conducted during the course of a substance abuse treatment program, as indicated in Paragraph 6.D.4.b, *Limits on Use of Patient Records*, of this Instruction.
3. Oral Fluid Test (OFT). OFT is an authorized additional form of drug testing. OFT is the procedure employed to obtain oral fluid, or saliva samples under controlled conditions, maintaining a chain of custody on each sample, and scientifically analyze the samples to detect the presence of controlled substances and prohibited non-controlled substances or their metabolites.
 - a. *Collecting Fluid Sample Specimens*. The DTC, ADTC or SC will document and process the collection of each sample in accordance with the procedures of the contracted testing facility.
 - b. *OFT Results*. Positive OFT results may constitute a DI and must be reported to the MAJCOM and the local CGIS office in accordance with Paragraph 6.C.2, *Commanding Officers (COs) and Officers-in-Charge (OICs)*. This requirement does not apply to OFTs conducted during the course of a substance abuse treatment program, as indicated in Paragraph 6.D.4.b, *Limits on Use of Patient Records*, of this Instruction.

4. Blood Test. Blood testing is an authorized additional form of drug testing. Blood testing is the procedure employed to obtain blood samples under controlled conditions, maintaining a chain of custody on each sample, and scientifically analyze the samples to detect the presence of controlled substances and prohibited non-controlled substances or their metabolites.
 - a. *Collecting Blood Sample Specimens.* Only a qualified medical person may collect a blood sample specimen. Blood tests must be conducted in accordance with the procedures of the contracted testing facility.
 - b. *Blood Test Results.* Positive blood test results may constitute a DI and must be reported to the MAJCOM and the local CGIS office in accordance with Paragraph 6.C.2, *Commanding Officers (COs) and Officers-in-Charge (OICs)*. This requirement does not apply to blood tests conducted during the course of a substance abuse treatment program, as indicated in Paragraph 6.D.4.b, *Limits on Use of Patient Records*, of this Instruction.
5. Steroid and Controlled Performance Enhancing Drug Testing. Steroid and controlled performance enhancing drug testing is an authorized additional form of drug testing. Steroid and controlled performance enhancing drug testing is the procedure employed to test for evidence of anabolic steroids, anabolic agents, and any drug, selective androgen receptor modulator (SARM), growth hormone, blood-boosting agent, side effect modulator, or masking agent intended to enhance or conceal the use of anabolic steroids listed in 21 U.S.C. § 802. Anabolic steroids are any drug or hormonal substance, chemically and pharmacologically related to testosterone (other than estrogen, progestin and corticosteroid) that promotes muscle growth and includes any salt, ester or ether of such a drug or substance described or listed in the Designer Anabolic Steroid Control Act of 2014 and subsequent amendments or 21 U.S.C. § 802, if that salt, ester or ether promotes muscle growth. Testing for steroids and controlled performance enhancing drugs is typically conducted through urinalysis testing. Other methods of authorized additional drug testing described in Paragraph. 6.F., *Authorized Drug Testing*, of this Instruction are acceptable for steroid and controlled performance enhancing drug testing.
 - a. *Collecting Steroid and Controlled Performance Enhancing Drug Specimens.* The DTC, ADTC, DTO, or SC will document and process the collection of each sample in accordance with the procedures of the contracted testing facility.
 - b. *Steroid and Controlled Performance Enhancing Drug Test Results.* Positive steroid and controlled enhancing drug test results may constitute a DI and must be reported to the MAJCOM and the local CGIS office in accordance with Paragraph 6.C.2, *Commanding Officers (COs) and Officers-in-Charge (OICs)*. This requirement does not apply to steroid and controlled performance enhancing drug tests conducted

during the course of a substance abuse treatment program, as indicated in Paragraph 6.D.4.b, *Limits on Use of Patient Records*, of this Instruction.

CHAPTER 7 PROHIBITION ON HEMP AND MARIJUANA ESTABLISHMENTS**A. Hemp Policy.**

1. Objective. Wrongful use of controlled substances, including marijuana, poses a significant risk to Coast Guard personnel and to unit readiness, and negatively impacts mission execution. The use, possession, manufacture, distribution, or export/import of marijuana is a violation of federal law and the UCMJ.
2. Marijuana and Tetrahydrocannabinol (THC). Marijuana is defined as all parts of the plant *cannabis sativa* L., the seeds thereof, and every derivative thereof. *See* 21 U.S.C § 802(16A). THC, including but not limited to Delta-8, Delta-9, and Delta-10 THC, are the main psychoactive chemical compound in marijuana, which elicits the mind-altering and euphoric sensations.
3. Hemp. Hemp is defined by 7 U.S.C. § 1639o and means the plant *cannabis sativa* L., and any part of that plant, including the seeds thereof and all derivatives, extracts, cannabinoids, isomers, acids, salts, and salts of isomers, whether growing or not, with a Delta-9 THC concentration of not more than 0.3 percent on a dry weight basis.
4. Cannabidiol (CBD). Similar to hemp, hemp-derived CBD contains up to 0.3 percent of THC. Hemp containing more than 0.3 percent of THC and non-hemp-derived CBD (including cannabis-derived CBD and synthetic CBD) fall under the definition of marijuana above and are considered controlled substances under the Controlled Substance Act (CSA) and Article 112a, UCMJ.
5. Federal Regulations. Hemp and hemp-derived CBD products are commercially sold as oils, vape oils, capsules, gum, concentrates, and edibles (protein bars, spreads, sauces, juices, cereal, snacks, and candies).
 - a. *Lack of Proper Regulations*. While the Food and Drug Administration (FDA) regulates some of these products (hulled hemp seeds, hemp seed protein powder, and hemp seed oil), many other unregulated products may pose some risk of being contaminated with THC above 0.3 percent, synthetic CBD, THC, or counterfeit versions of the same. These products could omit any reference to THC on the product label, list inaccurate ingredients, or both. In addition, the lack of proper regulations creates the following risks for the Coast Guard members:
 - (1) *Accumulation in Body*. THC, including THC contained in ingredients on the FDA's Generally-Recognized-As-Safe (GRAS) List, can accumulate in a human body to detectable levels. Consequently, Coast Guard members cannot rely on packaging or labeling of hemp and hemp-derived CBD products in determining whether the product contains THC concentrations above 0.3

percent or is otherwise safe to consume.

- (2) Contamination by other substances. Without proper FDA or U.S. Department of Agriculture (USDA) regulation, it is possible hemp or hemp-derived CBD products could contain ingredients hazardous to Coast Guard members' health. Without proper regulation a member has little assurance that the products are safe for consumption or use.
- b. *Interference with the Coast Guard Drug Inspection and Testing Program.* The use of these hemp and hemp-derived CBD products, both regulated and unregulated, may interfere with the effective administration of Coast Guard drug-testing program and the safety and operational readiness of Coast Guard members. The use of certain hemp and hemp-derived CBD products could result in a reporting of unlawful THC levels in Coast Guard members, even if a member had used only legal hemp and hemp-derived CBD products. The use of these products may undermine the Coast Guard's ability to effectively identify use of controlled substances and to ensure safety and operational readiness of its personnel.
 - c. *Coast Guard Hemp Policy.* This Instruction establishes the following policy to protect the reliability and integrity of the Coast Guard drug-testing program and to ensure safety and operational readiness of Coast Guard military personnel.
 - (1) **All Coast Guard members are prohibited from using any products containing hemp** as defined by 7 U.S.C. § 1639o, including its extracts and derivatives (such as hemp-derived CBD, hulled hemp seeds, hemp seed protein powder, and hemp seed oil), regardless of the product's THC concentration, claimed or actual, and regardless of whether the product may be lawfully purchased, sold, and/or used under Federal or state law applicable to civilians. This is a lawful punitive order and failure by Coast Guard members to comply with these provisions is a violation of the Article 92, UCMJ, Failure to Obey a Lawful General Order; and any other UCMJ Article that may apply. Violations may result in administrative or criminal action(s).
 - (2) For the purposes of this policy, **“use” means to inject, ingest, inhale, vape, apply to skin or hair, or otherwise introduce into the human body.** “Use” includes use of hemp or hemp-derived CBD products designed to penetrate, be absorbed or applied into or onto the skin layer, including but not limited to transdermal patches, and topical products (such as soaps, lotions, conditioners, shampoos, lip balms, and other topical products).
 - (3) This prohibition does not apply to the ingestion, consumption, or use of cannabinoid formulations approved as drugs by the FDA, for which the service member has a valid prescription, such as Dronabinol (Marinol®, Syndros®) and

cannabidiol (Epidiolex®). A prescription is valid if issued by a Coast Guard clinic, a DoD medical facility, or a civilian medical service provider approved by the Coast Guard or DoD.

- (4) This prohibition does not apply to use pursuant to legitimate law-enforcement activities, by authorized personnel in the performance of medical duties, or without knowledge that the product was made or derived from hemp, including hemp-derived CBD, where that lack of knowledge is reasonable. This prohibition also does not apply to the use of durable goods containing hemp, such as rope or clothing.
- (5) All other substances that do not meet the definition of hemp above, such as hemp containing more than 0.3 percent of THC, and non-hemp-derived CBD, (including cannabis-derived CBD, and synthetic and counterfeit CBD and THC) are considered controlled substances under the CSA and UCMJ, and are prohibited from being wrongfully used, possessed, manufactured, distributed, or imported as stated in this policy or pursuant to Article 112a, UCMJ.

B. Marijuana Establishments.

- 1. Prohibition of Marijuana Use. Despite legalization in several states, the use, possession, and distribution of marijuana remains prohibited under federal law and the UCMJ.
- 2. Association with Marijuana Businesses. Under Article 134, UCMJ, it is unlawful to knowingly associate with or perform the duties of an owner, operator, vendor, or direct investor for a Marijuana Business, even where permitted by state or local laws. Participation in or close association (such as businesses owned/operated by spouse/significant other) with marijuana growth or distribution commercial enterprises, including assisting or encouraging these commercial enterprises, is also a violation of the UCMJ.
 - a. *Direct Investor.* For the purposes of this prohibition, a direct investor means a Coast Guard member, who personally (without an agent or a third-party) and knowingly transfer(s) money or goods to an individual or a Marijuana Business, to acquire any interest in, or to establish or operate, a Marijuana Business (or its physical assets) with a purpose of producing income or capital gains.
 - (1) *Exceptions.* The direct investor definition does not include and does not apply to:
 - (a) The purchase or ownership of mutual funds or securities on the open market, which may include an enterprise as defined above, for the sole purpose of investment and without the intention of controlling or

participating in the control of the issuer, or election of one or more of its directors, or of assisting another individual or an enterprise in doing so.

- (b) Businesses, whose primary purpose is not growth, manufacture, sale, import/export, or distribution of marijuana or THC products and other related items, such as bookstores, cafes, bakeries, clothing stores, gas stations, etc.

b. *Marijuana Business.* A Marijuana Business means any individual, partnership, corporation, association, issuer, or other legal entity, and any union or group of individuals associated in fact although not a legal entity, which is engaged in manufacture, distribution, import/export to/from the United States, of marijuana, as defined by the CSA (21 U.S.C. § 802 et seq), and/or marijuana related items.

- (1) *Owner.* An owner of a Marijuana Business is a person or entity that controls, or has a legal right to control, use, manage, and convey, a Marijuana Business, regardless of the number of owned shares, or its legal status.
 - (2) *Operator.* An operator of a Marijuana Business means a person or entity that conducts the day-to-day operations of the Marijuana Business.
 - (3) *Vendor.* A vendor at a Marijuana Business means a person or entity that intentionally makes sales of, intentionally delivers, distributes, or dispenses, or offers or attempts to deliver, distribute, or dispense, marijuana and/or its related items at retail from a permanent or movable stand, or from an Internet site, whether in the United States or abroad, for the purpose of making profits.
3. Knowing Participation. Knowing participation in or close association with Marijuana Businesses, including assisting or encouraging these commercial enterprises, is also a violation of the UCMJ. Coast Guard members who knowingly associate with Marijuana Businesses, or persons engaged with such businesses, to the extent of and under circumstances that discredit the service or are prejudicial to good order and discipline, may be punishable under Article 134, UCMJ.
4. Prohibition on Entry Into and Support of Marijuana Establishments. Coast Guard military personnel are prohibited from knowingly visiting, entering, remaining in, patronizing, or otherwise conducting any kind of business with any Marijuana Businesses.
- a. This prohibition applies to fixed locations, mobile dispensaries, and online or delivery services, whether in the United States or abroad.
 - b. This prohibition does not extend to:
 - (1) Medical facilities or pharmacies distributing U.S. FDA-approved prescription

medications containing THC or CBD.

- (2) Businesses, whose primary purpose is not growth, manufacture, sale or distribution of marijuana or THC products and other related items, such as bookstores, cafes, bakeries, clothing stores, gas stations, etc.

C. Lawful General Order. The provisions of this Chapter constitute a lawful general order. Failure by military personnel to comply with the provisions of this Chapter may result in administrative or other disciplinary action.

CHAPTER 8 PROHIBITION ON POSSESSION OF DRUG PARAPHERNALIA

- A. **Objective.** Substance abuse by members of the Coast Guard is incompatible with military standards of discipline, performance, and operational readiness. It is the goal of the Coast Guard to eliminate the wrongful possession, use, promotion or distribution of drug paraphernalia.
- B. **Policy.** The sale, distribution, import into, or export out of the customs territory of the United States of drug paraphernalia by Coast Guard military members is prohibited by 21 U.S.C. § 863 and this chapter. Further, Coast Guard members will not wrongfully use, possess, or manufacture drug paraphernalia as defined by 21 U.S.C. § 863. Members with a bona fide medical or clinical purpose, or as required for the performance of their duties, are exempt from this requirement. Coast Guard members will also not introduce drug paraphernalia onto a federal installation, vessel, vehicle, or aircraft; unless the member has a bona fide medical or clinical purpose, or it is required for the performance of their duties. This policy constitutes a lawful punitive order the violation of which is punishable under Article 92 and Article 134, UCMJ. Violations of this policy also constitute a DI. Members found in violation must be processed for separation in accordance with Reference (b), as appropriate.
- C. **Drug Paraphernalia.** Drug paraphernalia is defined under 21 U.S.C. § 863 and includes but is not limited to equipment, products, and materials of any kind that are used to traffic, supply, inject, ingest, inhale, cultivate, manufacture, or otherwise introduce into the human body any drug or substance in order to abuse it.
- D. **Matters Considered in the Determination of What Constitutes Drug Paraphernalia.** To ensure that innocently possessed objects are not classified as drug paraphernalia, the criminal intent of the person in possession or control of an object is a key element of the drug paraphernalia definition. Section 863 of Title 21, U.S.C, contains matters for consideration in determining whether an item is drug paraphernalia. Some additional factors to consider in determining criminal intent include:
1. Statements. Statements by the person in possession of the object concerning its use;
 2. Proximity to Drug/Controlled Substances. The proximity of the object, in time and space, to the unlawful use, possession, or distribution of drugs/controlled substances;
 3. Proximity to Prohibited Substances. The proximity of the object to prohibited substances;
 4. Residue. The existence of residue of prohibited/controlled substances on the object;
 5. Instructions. Instructions, oral or written, provided with the object concerning its use;

6. Descriptions. Descriptive materials accompanying the object which explain or depict its use;
 7. Scope of Legitimate Use. The existence and scope of legitimate uses for the object in the community; and,
 8. Testimony. Expert testimony concerning its use.
- E. **Lawful General Order**. The provisions of this Chapter constitute a lawful general order. Failure by military personnel to comply with the provisions of this Chapter may result in administrative or other disciplinary action.

CHAPTER 9 BEHAVIORAL ADDICTIONS

A. Gambling Disorder.

1. Objective. Gambling Disorder, as a Behavioral Addiction, is treated the same as alcohol or drugs from a medicinal standpoint. Gambling Disorder is known to co-occur with anxiety, depression, and the substance use disorders described within this Instruction. A gambling disorder referral must be made in accordance with Reference (a).
2. Definition. Gambling Disorder is defined in Reference (j) as a persistent and recurrent problematic gambling behavior leading to clinically significant impairment or distress, as indicated by the individual exhibiting four (or more) of the following in a 12-month period:
 - a. A need to gamble with increasing amounts of money in order to achieve the desired excitement;
 - b. Is restless or irritable when attempting to cut down or stop gambling;
 - c. Has made repeated unsuccessful efforts to control, cut back, or stop gambling;
 - d. Is often preoccupied with gambling (e.g., having persistent thoughts of reliving past gambling experiences, handicapping or planning the next venture, thinking of ways to get money with which to gamble);
 - e. Often gambles when feeling distressed (e.g., helpless, guilty, anxious, depressed);
 - f. After losing money gambling, often returns another day to get even (“chasing” one’s losses);
 - g. Lies to conceal the extent of involvement with gambling;
 - h. Has jeopardized or lost a significant relationship, job, or educational or career opportunity because of gambling; and,
 - i. Relies on others to provide money to relieve desperate financial situations caused by gambling.
3. Policy. The Coast Guard will identify and provide appropriate treatment and counseling to military members afflicted with a gambling disorder to help mitigate and prevent individual readiness issues.
4. Commanding Officers (COs) and Officers-in-Charge (OICs).
 - a. COs/OICs who suspect a member may have a gambling problem should refer that member for a medical evaluation of a potentially addictive disorder.

- b. COs/OICs should encourage members and their families to use CG-SUPRT counseling and Personal Financial Management (PFM) resources to both proactively address individual and familial concerns and establish healthy financial management practices.

B. Addictive Behaviors. Addictive behavior may interfere with a member's day-to-day life and cause substantial harm and adverse consequences, both personally and professionally. Commands should endeavor to recognize signs that a member may have a behavioral addiction and seek guidance from medical providers to maximize opportunities for early intervention. If a member's addictive behavior becomes disruptive or detracts from operational effectiveness, commands should seek guidance from their servicing legal office as well as from medical providers. Members who have trouble with addictive behaviors are unlikely to regulate those behaviors by themselves.